

EASTMAN & SMITH LTD.

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Established 1844

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May 3, 2023

VIA EMAIL ONLY

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[\(megpop123@yahoo.com\)](mailto:megpop123@yahoo.com)

Matthew and Megan Snow
1 Longvue Court
Mount Vernon, OH 43050

Re: ***State of Ohio, ex rel. Dave Yost, Ohio Attorney General v. The Landings
Property Association, Inc., et al., v. Carol A. Diding, Trustee, et al.***
Our File Number: 3472-222027

Dear Mr. and Mrs. Snow:

We are pleased to have the opportunity to represent you in connection with the Third-Party Complaint filed by Mullins Bros. Ltd. concerning the Knox Cattle Company Dam, and the most recently filed Third Amended Complaint by the State of Ohio. This letter will confirm the terms of our engagement.

We have been asked to jointly represent a large number of homeowners who have been named as defendants and third-party defendants in a lawsuit (collectively, the "Joint Parties"). It is our understanding that none of the Joint Parties are adverse to each other and that none of the Joint Parties intends to assert a claim against any of the other Joint Parties.

The Ohio Rules of Professional Conduct require us to explain the advantages and disadvantages of joint legal representation. For us to proceed, you all must consent, in writing, to the joint representation and waive in writing any existing conflicts of interest that might exist and the disclosure of confidential information to the other parties.

The principal advantage of joint representation is the existence of the common set of facts and the common legal arguments which will provide the basis for establishing the rights and responsibilities of the parties concerning the Dam. Joint representations under these circumstances could result in legal expense savings for each of the Joint Parties.

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There are also disadvantages. Attorneys have a duty of confidentiality and loyalty to their clients. Attorneys have a duty not to disclose to any third-party confidential information provided to the attorney by the client and any advice or communication provided by the attorney to the client. However, joint representation obligates us to disclose to each of you all material confidential information related to the representation provided to us by any of you and by us to any of you. The attorney-client privilege prevents an attorney from being forced to disclose client information to a third party. However, in any future disputes between the Joint Parties, the attorney-client privilege would not apply to information provided to us or by us during the joint representation.

Second, if any claims or disputes arise amongst any of the Joint Parties, we would not be able to represent anyone in those claims or disputes and it might be necessary for us to withdraw from the representation of all of the Joint Parties. If this occurs, each of you could incur additional legal expenses to engage new attorneys.

Litigation of this nature can become highly emotional and is extremely fact intensive. Under these circumstances, litigation that is normally expensive can become even more expensive. We cannot provide a fixed fee or not-to-exceed fee.

We will send monthly invoices for our legal fees to all of the Joint Parties. We understand you have an agreement amongst you to share payment of our fees.

Each of you will be jointly and severally responsible to the Firm for the entire fee. This means the entire legal fee is owed to the Firm by each of you. If one of the Joint Parties does not pay their agreed share, then the other clients must pay the Firm and independently pursue the non-paying client for the unpaid share.

My hourly billing rate is \$690. Also working with me on this case will be attorney Kyle D. Tucker, who has a billing rate of \$250. There may be other attorneys and legal assistants who may be asked to work on this case, who have hourly rates ranging from \$135-\$400 per hour. These rates are effective until December 31, 2023, and will change thereafter. We will also bill for all out-of-pocket costs and expenses.

As a new client of the Firm, based on the nature of this matter, we request a retainer in the amount of \$750.00. The full retainer must be received together with a signed copy of the letter before commencement of any legal services on behalf of the Joint Parties. The retainer will be held in our trust account as security for payment of fees and expenses. We will draw against it to satisfy each monthly invoice. We may require that the retainer be replenished as a condition of continuing work on your behalf. In addition, we may request additional retainer payments if we determine that the cost of the required services and expenses to be incurred on the engagement may exceed any retainer balance. Additional retainer payments must be made within 15 days of the dates we request them. We reserve the right to discontinue our representation until you make such requested payments. In accordance with the Billing and Fee Policy, any unused portion of the retainer will be refunded to you at the conclusion of our representation.

Matthew and Megan Snow
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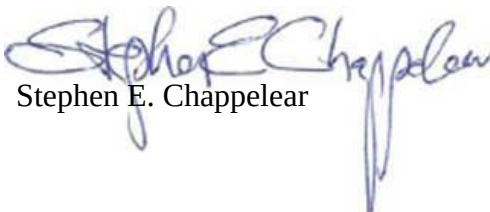
Of course, any of the Joint Parties may decline to proceed with this joint representation or terminate our representation at any time. We encourage you to seek advice from another attorney if you have any concerns relating to this joint representation.

If you consent to our joint representation under these circumstances, please execute a copy of this letter and return it to us to confirm the engagement. The retainer can be paid by a check made payable to "Eastman & Smith, Ltd." and mailed to: Eastman & Smith, Ltd., Attn: Kate Long, P.O. Box 10032, Toledo, OH 43699. You may also pay by credit card by calling Kate in our Accounting Department at 419-247-1783. When making your payment, please reference client/matter number 3472-222027, and advise this is for your portion of the retainer.

Should you have any questions concerning this letter, or any matter relating to our representation, please feel free to contact me. We thank you for this assignment and look forward to assisting you with this matter.

Very truly yours,

EASTMAN & SMITH LTD.


Stephen E. Chappellear

SEC/jrm

Acknowledged, Consent and Agreed:

Matthew M. Snow Date

Megan L. Snow Date